43. The phrase "judgment proof" in this context is worth drilling down on. A corporation would not be considered "judgment proof" by experienced legal counsel such as Ms. Wood unless it possessed no or grossly insufficient assets upon which to recover. If the applicants were aware that 176 NSL may not have assets upon which to recover by December 2016, and were searching the public registries of assets possessed by both 176 NSL and Arichat Metal, then it can be inferred that they were aware of the transaction between those two entities. The applicants were also aware that 176 NSL and Arichat Metal involved the same officers and directors, being Mr. Boucher and Mr. Boudreau, and therefore that the transaction may not have been at arm's-length, and thus a sham as they now allege. These facts were clear to the applicants on or before December 20, 2016.

44. Throughout their brief filed May 20, 2021 with respect to this summary judgment motion, the applicants' present counsel submitted that the first time the applicants learned 176 NSL was "judgment proof" was on December 5, 2019.[28] In light of the evidence produced by order following the AMF Respondents' successful motion for disclosure, the applicants' submission did not disclose the full truth. The applicants' former counsel was clearly aware that 176 NSL may be "judgment proof" as early as December 20, 2016.

45. In in the applicants' brief, submitted in support of this summary judgment motion prior to the adjournment in 2021, the applicants phrase the legal question at the heart of this motion as: "When did the [applicants] have sufficient knowledge [176 NSL] was judgment proof?"[29] The applicants went on to say that they only learned that 176 NS was "judgment proof" when Mr. Boucher was discovered in aid of execution on December 5, 2019, concluding, "That is the moment it became clear that there was a further cause of action – because it became clear that [176 NSL] could not pay its debts." Although Mr. Boucher may have *confirmed* that 176 NSL was "judgment proof" under oath in 2019, this was already clear to the applicants back in December 2016 when Ms. Wood used that very phrase, "judgment proof", to describe 176 NSL, speculating that it "would certainly explain his very cavalier attitude to this litigation". To trigger the limitation clock in 2016, the applicants did not require certainty in the form of sworn discovery evidence; they only required sufficient material facts. The material facts to support that plausible inference were before the applicants by December 20, 2016.

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28 Applicants' Brief, filed May 20, 2021, para 16.
29 Applicants' Brief, filed May 20, 2021, para 86.